

Franciscus Dylan Rosario,
7624 Melody,
Rohnert Park, CA 94928,
E: soltrinox@gmail.com
Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

07/22/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**MEMORANDUM OF POINTS
AND AUTHORITIES
(OPPOSITION)**

Hearing: August 26, 2026
Time: 9:00 a.m.
Dept.: 302

TABLE OF CONTENTS

	AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO ACCEPT	1
I.	I. INTRODUCTION	2
II.	II. LEGAL STANDARDS	4
III.	III. ARGUMENT	5
IV.	IV. CONCLUSION	13

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.

2. This paper is filed under Code of Civil Procedure section 1005, subdivision (b); Code of Civil Procedure section 1010; California Rules of Court, rules 3.1110 and 3.1113; and Code of Civil Procedure sections 391 through 391.7 as applicable to the relief opposed.

3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

4. The Court's authority to consider the substance is under Code of Civil Procedure sections 391 through 391.7 and California Rules of Court, rules 3.1110 and 3.1113.

5. This paper is timely filed for the August 26, 2026 hearing under Code of Civil Procedure section 1005, subdivision (b), and California Rules of Court, rule 3.1300.

Hearing: August 26, 2026, 9:00 a.m., Dept. 302.

I. INTRODUCTION

Defendant CSAA Insurance Exchange asks this Court to brand Plaintiff a vexatious litigant and to impose statewide security and pre-service screening because Plaintiff has pursued primary rights that CSAA's own claim handling created. The motion rests on five interlocking errors.

[1] Merits dodge via unauthorized anti-SLAPP immunity. Code of Civil Procedure section 425.17(c) exempts from anti-SLAPP specified commercial claims-handling speech. Anti-SLAPP is not a merits adjudication of empty-file and concealment primary rights. (*JKC3H8, Inc. v. Colton* (2013) 221 Cal.App.4th 468; *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1060; *Baral v. Schnitt* (2016) 1 Cal.5th 376; *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995.) This vexatious motion continues the same merits-avoidance pattern. (RFJN Exs. D, E.)

[2] Anti-SLAPP posture locks CSAA into Fair Claims conflict. Defense papers that describe insured-only / petitioning denial and file opacity are contemporaneous-file admissions. *Wilson v. 21st Century Ins. Co.* (2007) 42 Cal.4th 713 forbids jury-hindsight rehab of a deficient investigation. Standard-of-care framing proceeds through *Zhang v. Superior Court* (2013) 57 Cal.4th 364 and *Moradi-Shalal v. Fireman's Fund Ins. Companies* (1988) 46 Cal.3d 287 (not a private

Insurance Code section 790.03 tort), including 10 CCR section 2695.7(d) as a standard of care only.

[3] **Deny-delay-defend versus open-court access.** Volume and status motions are delay and gate-keeping. Access to the courts is protected. (Cal. Const., art. I, § 3.) Section 391 is not a substitute for defending investigation facts. (*Morton v. Wagner* (2007) 156 Cal.App.4th 963, 971-972.)

[4] **Dissuasion by manufacturing limits on lawful avenues.** Plaintiff may pursue all lawful remedies. Defendant cannot manufacture “vexatiousness” by stacking papers against a leave-to-amend / SAC request, then counting the resulting responses. The verified defense stack against the FAC / leave path is **three** Defendant-noticed motions: (i) Special Motion to Strike under section 425.16 (filed April 9, 2026); (ii) Demurrer (filed April 13, 2026); (iii) Motion to Strike under section 436 (filed April 22, 2026). Defendant separately opposed Plaintiff’s April 16, 2026 Motion for Leave to File Second Amended Complaint (opposition filed April 23, 2026). (Clerk ROA / RFJN Ex. B filing sequence; July 1, 2026 order calendar, RFJN Ex. E.)

[5] **Defendant complains of conditions it created (multi-way).**

1. **But-for:** But for Defendant’s multi-motion stack against Plaintiff’s leave / SAC request, the bulk of responsive filings would not exist.
2. **Authorship:** The docket volume Defendant cites is predominantly Defendant-initiated motion practice and Plaintiff’s obligated responses.
3. **Estoppel / equity:** A party may not manufacture the condition precedent to a section 391(b)(3) “volume” finding by its own successive blocking motions, then seek litigant-status sanctions for the predictable response.

Separately: section 391(b)(2) fails (wrong primary right, wrong defendant, incomplete finality). (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681-682; *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 904.) PI “finality” is further weakened where the trial court instructed that requested Vehicle Code duty statutes were not part of the evidence the jury could consider. (Wong RT 11, pp. 7-8; Tx 79843794 / 79830359 / 79843899; see Argument VII.) Section 391.3 requires both a vexatious finding and no reasonable probability of prevailing; the July 1 order did not extinguish unadjudicated institutional-omission rights. (*Baral*, 1 Cal.5th at 393-396.) Lodging

1 statutes and controlling authority for the record follows the same evidence-practice logic and is not
2 section 391(b)(3) flagrant abuse. (*Morton*, 156 Cal.App.4th at 971-972.) The motion, the proposed
3 statewide order, and any attempt to convert costs into a vexatiousness finding should be denied.

4 **II. LEGAL STANDARDS**

5 **A. SECTION 391(B)(2)**

6 A vexatious litigant under section 391(b)(2) is a person who, after a litigation has been finally deter-
7 mined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either
8 (i) the validity of the determination against the same defendant or (ii) the cause of action, claim,
9 controversy, or any of the issues of fact or law determined or concluded by the final determination
10 against the same defendant. (Code Civ. Proc., § 391(b)(2).)

11 **B. SECTION 391(B)(3)**

12 A litigant is vexatious under section 391(b)(3) if, while acting in propria persona, the litigant re-
13 peatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery,
14 or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. (Code
15 Civ. Proc., § 391(b)(3).) *Morton* requires flagrant abuse; docket volume alone does not establish
16 frivolousness. (*Morton*, 156 Cal.App.4th at 971-972.)

17 **C. SECTION 391.3 SECURITY**

18 Security under section 391.3 is available only after a vexatious finding and only if there is no
19 reasonable probability that the plaintiff will prevail in the litigation against the moving defendant.
20 (Code Civ. Proc., § 391.3; *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1169-1170.)

21 **D. PREFILING ORDERS UNDER SECTION 391.7**

22 Statewide prefiling and screening regimes are governed by section 391.7, not by a blank proposed
23 order on a single-case security motion. (Code Civ. Proc., § 391.7.)

24 **E. COMMERCIAL ANTI-SLAPP GATEWAY (SECTION 425.17(C))**

25 Section 425.17(c) withdraws anti-SLAPP protection from specified commercial speech, including
26 claims-handling communications within its terms. (*JKC3H8*, 221 Cal.App.4th 468.) Invoking
27 anti-SLAPP despite that gateway is not a merits adjudication of empty-file primary rights. (*Park*,

2 Cal.5th at 1060; *Baral*, 1 Cal.5th at 393-396; *Bonni*, 11 Cal.5th at 1009-1012.)

III. ARGUMENT

ARGUMENT I

Section 391(b)(2) fails: wrong primary right, wrong defendant, and no final determination of the issues CSAA identifies.

A. Wrong primary right

California defines a cause of action by the primary right invaded, not by shared facts or a shared accident nucleus. (*Crowley*, 8 Cal.4th at 681-682; *Mycogen*, 28 Cal.4th at 904; *Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797-798.)

The primary right in CGC-21-594102 was freedom from negligent motor-vehicle operation. The primary rights in CGC-25-631802 concern CSAA's claims handling: certification of a "concluded" investigation without foundational objective evidence; concealment of an empty file; and related regulatory and unfair-competition predicates. Shared evidence (911, BWC, CAD) can support different primary rights. Under *Park*, speech or petitioning may be evidence of liability rather than the wrong itself. (*Park*, 2 Cal.5th at 1060.)

B. Wrong defendant

Section 391(b)(2) turns on relitigation against the same defendant as to whom the prior litigation was finally determined. The personal-injury judgment ran against Subhi Abdelhalim, not against CSAA Insurance Exchange. Code of Civil Procedure section 906 governs appellate review of a trial court judgment; it does not convert a distinct carrier suit against a non-judgment defendant into section 391(b)(2) relitigation.

C. Not "finally determined"

The personal-injury judgment is on appeal in A173827. (RFJN Ex. H.) Defense attaches the Notice of Appeal while treating the PI judgment as a closed book. Anti-SLAPP orders strike protected-activity allegations; they do not finally determine every institutional-omission theory. (*Baral*, 1 Cal.5th at 393-396; *Bonni*, 11 Cal.5th at 1009-1012.) Incomplete adjudication also appears in the PI trial record: the court instructed that Vehicle Code sections 22107 and 21804(a) "were [not] part of the evidence" and that the jury was "not permitted to consider that as evidence in the case,

period.” (Wong RT 11, pp. 7-8; Tx 79843794 / 79830359 / 79843899; Evid. Code, § 451(a); Code Civ. Proc., § 614.) That instruction is raised here only as evidence-practice and incomplete-adjudication context for section 391(b)(2) finality; Plaintiff does not ask this Department to reverse the Wong ruling or to decide A173827. (See Argument VII.)

D. Empty-file evidence, not a PI re-trial

Using 911/BWC/CAD materials as proof of non-obtainment is *Park* evidence analysis, not section 391(b)(2) relitigation. Post-trial motions in the PI case likewise do not convert distinct carrier claims into repeated relitigation against CSAA.

Relief under Argument I: Deny designation under section 391(b)(2).

ARGUMENT II

Section 391(b)(3) fails: docket and email counts are not flagrant abuse under *Morton*.

A. *Morton* flagrant-abuse standard

Morton requires proof that filings are unmeritorious or tactics frivolous, not merely numerous. (*Morton*, 156 Cal.App.4th at 971-972.) Counts (approximately 70 filings in 801; approximately 200 in 802; 121 and 130 emails) and adjectives (“torrent,” “deluge,” “AI-generated”) are not proof of frivolousness. Defendant quotes *Morton*’s flagrant-abuse language, then treats volume adjectives (“torrent,” “deluge,” approximate filing counts) as if that standard were satisfied. Quoting the standard while ignoring it is not proof under section 391(b)(3).

B. Discovery purpose: empty file and claims handling

Discovery directed to whether CSAA obtained 911 audio, BWC, and CAD before its February 2021 “concluded” investigation certification is not “unnecessary” where the gravamen is investigation compliance and concealment. Stay-scope disputes under section 425.16(g) are litigable; disagreement about stay scope is not, without more, section 391(b)(3) abuse.

C. Email volume and authorship of the paper war

Email volume includes meet-and-confer, electronic service, scheduling, and responses to Defendant’s own correspondence invoking sanctions and vexatious-litigant threats. Defendant cannot inflate a correspondence count by counting Plaintiff’s replies to Defendant’s demands and then treat the replies as independent harassment. The same causation applies to docket volume: see Ar-

gument VI. The access-blocking, AI-smear, and cease-filings threads are addressed in Plaintiff's Supplemental MPA and Exhibits F-N.

D. Tone allegations

Defense catalogs discourteous language in email exhibits. Any prior tone that fell below professional courtesy is withdrawn as a matter of advocacy. Plaintiff will conduct further communications courteously and will address substance, not personalities. Tone disputes do not convert a claims-handling controversy into section 391(b)(3) frivolousness.

E. *JKC3H8* notices are candor, not abuse

Notices of controlling or directly adverse authority, including *JKC3H8* and section 425.17(c) commercial-speech / gateway principles, discharge candor obligations. (Rules Prof. Conduct, rule 3.3(a)(2).) Those notices are not tactics "solely intended to cause unnecessary delay."

Relief under Argument II: Deny designation under section 391(b)(3).

ARGUMENT III

Section 391.3 security fails: no vexatious finding, and the July 1 order does not establish no reasonable probability on unadjudicated rights.

A. Dual requirement

Section 391.3 requires (1) a vexatious-litigant finding and (2) no reasonable probability that the plaintiff will prevail against the moving defendant. If Arguments I and II are accepted, security never arises.

B. July 1, 2026 order is limited

The July 1, 2026 order (RFJN Ex. E) addressed the FAC as framed around communication and litigation conduct and applied the litigation privilege to that framing. It did not perform a claim-by-claim *Baral / Bonni* adjudication of non-communicative concealment, empty-file certification, or investigation-duty theories. An anti-SLAPP grant on a communication-framed pleading is not a merits adjudication that Plaintiff has "no reasonable probability" on distinct primary rights. (*Baral*, 1 Cal.5th at 393-396; *Park*, 2 Cal.5th at 1060.)

Plaintiff's July 6, 2026 letter to Porter Scott placed Defendant on notice of that primary-right separation. Defense filed this motion without curing that analytical gap.

1 **C. Contra Costa venue is not evasion**

2 CSAA's principal place of business and claim-administration locus support Contra Costa venue
3 for claims against the carrier. Labeling a proper venue choice "forum shopping" does not satisfy
4 section 391.3.

5 **D. Facial defects in the security memorandum**

6 Defendant's security argument is further unreliable on its face. In arguing that the July 1, 2026
7 anti-SLAPP order "effectively end[ed] the case," Defendant cites "RFJN Ex. F." Defendant's own
8 Request for Judicial Notice identifies Exhibit E as the July 1 order granting the special motion to
9 strike and Exhibit F as an unrelated order from the personal-injury case denying a "Prayer" and a
10 Code of Civil Procedure section 170.6 challenge. A moving party cannot carry section 391.3 by
11 mis-citing the very order it asks the Court to notice. The same memorandum also misstates the
12 governing statute (citing section 391(d) for the vexatious-litigant determination, which is defined
13 in section 391(b)), mislabels Plaintiff's First Amended Complaint as "Defendant's," and asks the
14 Court to "impose sanity" rather than security, while describing the anti-SLAPP ruling as if an
15 "Anti-SLAPP lawsuit" were granted. Those defects reinforce that Defendant has not made the
16 careful, subdivision-specific showing *Morton* and sections 391(b) and 391.3 require.

17 **Relief under Argument III:** Deny security under section 391.3.

18 **ARGUMENT IV**

19 **The proposed order is unauthorized and overbroad under section 391.7 and due process.**

20 Defendant's proposed order would declare Plaintiff vexatious under section 391(b) without subdi-
21 vision findings; order security in a blank amount in all pending California actions; require concur-
22 rent security with any new statewide action; and subject any filing to pre-service screening in any
23 action Plaintiff initiates.

24 That relief exceeds case-specific section 391.3 security and bypasses section 391.7's prefiling-order
25 procedures. Statewide screening rewards the party that multiplied the docket and chills open-court
26 access. (Cal. Const., art. I, § 3; *Shalant*, 51 Cal.4th at 1169-1170.) The Notice of Motion
27 states grounds limited to relitigation and "unmeritorious and duplicative discovery motions," yet
28 the proposed order seeks statewide blank-bond and universal pre-service screening. That notice /

1 relief mismatch underscores overbreadth under section 391.7.

2 **Relief under Argument IV:** Deny the proposed order in its entirety.

3 **ARGUMENT V**

4 **Themes [1]-[2]: statutory exemption / unauthorized anti-SLAPP immunity, and record posi-**
5 **tions incompatible with Fair Claims duties.**

6 **A. Section 425.17(c) gateway and merits dodge [1]**

7 Section 425.17(c) provides a statutory exemption for specified commercial claims-handling speech.
8 Treating anti-SLAPP as a blanket shield against empty-file and concealment primary rights is unau-
9 thorized anti-SLAPP immunity contrary to section 425.17(c). (*JKC3H8*, 221 Cal.App.4th 468.)
10 *Park, Baral*, and *Bonni* confirm that protected-activity framing and claim-by-claim analysis are
11 not a substitute for adjudicating institutional omissions. The July 1 order and Defendant’s anti-
12 SLAPP memorandum (RFJN Exs. D, E) show the merits-avoidance pattern this vexatious motion
13 continues: convert investigation-file disputes into “petitioning,” strike the pleading, then brand the
14 claimant vexatious for trying to plead around the strike.

15 Restated for causation (theme [5], formulation in Argument V): **But for** Defendant’s choice to
16 litigate investigation emptiness through anti-SLAPP immunity rather than file-state proof, the leave
17 / amendment / opposition cascade would not have been necessary.

18 **B. Fair Claims conflict and locked record positions [2]**

19 Defense papers that describe insured-only denial, petitioning immunity, and opacity of the claims
20 file are contemporaneous positions about what the file did and did not contain. *Wilson* forbids
21 rehabilitating a deficient investigation with later jury-trial narrative. (*Wilson*, 42 Cal.4th 713.)
22 Plaintiff does not plead a private Insurance Code section 790.03 cause of action; *Moradi-Shalal*
23 cabins that path. (*Moradi-Shalal*, 46 Cal.3d 287.) Unfair-competition and related theories may still
24 use Fair Claims standards as standard of care, including 10 CCR section 2695.7(d), consistent with
25 *Zhang*. (*Zhang*, 57 Cal.4th 364.) Record positions that lock CSAA into investigation / file-state
26 admissions incompatible with those duties cut against equating Plaintiff’s pursuit of empty-file
27 remedies with section 391(b)(3) frivolousness.

28 Authorship restatement (theme [5]): the “volume” Defendant attributes to Plaintiff is in substan-

tial part the product of Defendant's own anti-SLAPP / demurrer / strike strategy and Plaintiff's obligated responses.

Relief under Argument V: Deny the motion; refuse to treat anti-SLAPP posture or Fair Claims-incompatible file admissions as proof of vexatiousness.

ARGUMENT VI

Themes [3]-[5]: deny-delay-defend, manufactured limits on leave, and self-created docket.

A. Deny-delay-defend versus access [3]

Section 391 is a status statute for flagrant abuse, not a tool to punish persistence in seeking investigation facts. (*Morton*, 156 Cal.App.4th at 971-972.) Open-court access principles (Cal. Const., art. I, § 3) frame why extreme statewide screening is especially inappropriate where the moving party chose multi-track dispositive practice instead of producing a complete claims file.

B. Verified stack against leave / SAC [4]

From the clerk register of actions for CGC-25-631802 (the ROA Defendant seeks noticed as RFJN Ex. B) and the July 1, 2026 order calendar (RFJN Ex. E):

Actor	Filing	Date
Plaintiff	Motion for Leave to File Second Amended Complaint	April 16, 2026
Defendant	Special Motion to Strike (anti-SLAPP)	April 9, 2026
Defendant	Demurrer to FAC	April 13, 2026
Defendant	Motion to Strike (CCP § 436)	April 22, 2026
Defendant	Opposition to Motion for Leave to File SAC	April 23, 2026

Verified count: three Defendant-noticed motions against the FAC that blocked, mooted, or forced multi-track briefing around Plaintiff's leave / SAC path (anti-SLAPP; demurrer; section 436 strike), plus a separate opposition to the April 16 leave motion. Plaintiff later sought leave to file a Third Amended Complaint (April 28, 2026), which Defendant also opposed (May 12, 2026). Plain-

1 tiff's subsequent oppositions, supplements, and notices were predominantly **responses** to those
2 Defendant-initiated filings, not freestanding harassment.

3 Defense cannot dissuade lawful amendment by stacking three dispositive motions against one leave
4 request, then cite the resulting paper as section 391(b)(3) "volume."

5 **C. Self-created docket: three formulations of theme [5]**

6 1. **But-for.** But for Defendant's multi-motion stack against Plaintiff's leave / SAC request, the
7 bulk of responsive filings would not exist.

8 2. **Authorship.** The docket volume Defendant cites is predominantly Defendant-initiated mo-
9 tion practice and Plaintiff's obligated responses.

10 3. **Estoppel / equity.** A party may not manufacture the condition precedent to a section 391(b)(3)
11 volume finding by its own successive blocking motions, then seek litigant-status sanctions for
12 the predictable response. Equity does not favor branding the claimant vexatious for pursuing
13 institutional omissions the carrier's own empty file created, while the carrier seeks statewide
14 screening based on paper it invited. (*Morton*, 156 Cal.App.4th at 971-972.)

15 Causation chain: empty file → leave / SAC request → defense three-motion stack → responsive
16 paper volume → this section 391 motion. Plaintiff cannot be at fault for Defendant's strategic
17 choices. The Supplemental Memorandum and Exhibits F-N supply the email layer of the same
18 continuum: counsel settlement/dismissal pressure, artificial-intelligence pejoratives, cease-filings
19 requests, and an express April 30 section 391 threat preceding this July 21 filing.

20 **Relief under Argument VI:** Deny designation and security; refuse extreme section 391.3 / statewide
21 screening relief predicated on self-created volume.

22 **ARGUMENT VII**

23 **Vexatiousness is not compliance with the court's own evidence logic: lodging law and author-**
24 **ity is not section 391(b)(3) abuse.**

25 **A. Wong RT 11 evidence-of-law instruction**

26 At the personal-injury trial, after a jury question concerning Vehicle Code sections 22107 and
27 21804(a), the court instructed that those sections were not part of the evidence and that the jury
28 was "not permitted to consider that as evidence in the case, period." (Wong RT 11, pp. 7-8; Tx

1 79843794 / 79830359 / 79843899; Evid. Code, § 451(a); Code Civ. Proc., § 614.) Plaintiff lodges
2 that transcript excerpt as Plaintiff’s Exhibit D solely to show incomplete adjudication and the trial
3 court’s evidence-of-law framing. Plaintiff does not ask Department 302 to reverse the Wong ruling
4 or to decide the merits of A173827.

5 **B. Evidence logic and Plaintiff’s lodging practice**

6 The practical logic of that instruction is: if a proposition is not entered as evidence the tribunal
7 may consider, it is not to be treated as evidence, period. Plaintiff has lodged statutes, controlling
8 authority, RFJNs, and notices of adverse authority (including *JKC3H8* and section 425.17(c) gate-
9 way principles) so that this Court has a complete record of the law and issues Plaintiff asks it to
10 consider. That practice follows, rather than flouts, the evidence-practice framing reflected in Wong
11 RT 11. It is the opposite of hiding the ball.

12 **C. *Morton*: lodging law is not flagrant abuse**

13 *Morton* requires flagrant abuse, not vigorous record-building. (*Morton*, 156 Cal.App.4th at 971-
14 972.) Notices of controlling or directly adverse authority discharge candor obligations. (Rules
15 Prof. Conduct, rule 3.3(a)(2); see Argument II.E.) Branding that lodging as section 391(b)(3) ha-
16 rassment would punish compliance with evidence-practice and candor norms.

17 **D. Mixed messages do not extinguish petition rights**

18 Withholding requested statutory duty from the jury as “not part of the evidence,” then branding
19 Plaintiff’s lodging of statutes and authority as vexatious, creates mixed messages. Mixed messages
20 do not extinguish the right to petition. (Cal. Const., art. I, § 3.) PI “finality” under section
21 391(b)(2) is weakened where the statutory negligence duty Plaintiff requested never reached the
22 jury as evidence the jury could consider. (Argument I.C.)

23 **E. Institutional causation cross-reference**

24 The deny-delay-defend and self-created-docket themes in Arguments V and VI remain: empty-file
25 investigation disputes, unauthorized anti-SLAPP immunity under section 425.17(c), and Defen-
26 dant’s three-motion stack against leave / SAC produced responsive volume. Argument VII adds
27 only that lodging law for incomplete-adjudication and evidence-practice reasons is not a separate
28 basis for section 391 designation.

1 **Relief under Argument VII:** Deny designation under section 391(b)(2) and (b)(3) insofar as
2 Defendant treats lodging of statutes, RFJNs, or notices of authority as abuse; refuse to equate
3 record-building with flagrant abuse under *Morton*.

4 **IV. CONCLUSION**

5 For the foregoing reasons, Plaintiff respectfully requests that the Court:

- 6 1. Deny Defendant's motion to declare Plaintiff a vexatious litigant under Code of Civil Proce-
7 dure section 391(b)(2) and (b)(3);
- 8 2. Deny Defendant's request for security under section 391.3;
- 9 3. Deny Defendant's proposed order in full, including blank statewide bond and universal pre-
10 service screening terms;
- 11 4. Enter Plaintiff's [Proposed] Order Denying Motion (lodged concurrently);
- 12 5. Address Memorandum of Costs (MC-010) issues only through Plaintiff's separately noticed
13 Motion to Tax Costs under CRC 3.1700(b), and not as proof of vexatiousness;
- 14 6. Grant such other and further relief as the Court deems just and proper.

Dated: July 22, 2026



Franciscus Dylan Rosario
Plaintiff, In Pro Per

7624 Melody
Rohnert Park, CA 94928
650.488.7510
E: soltrinox@gmail.com

VALIDATION VERIFICATION

(CRC 2.100 through 2.111; CRC 2.256(b); CRC 2.257; CCP § 1010.6 / CRC 1.21)

I, the undersigned Plaintiff in propria persona, verify under penalty of perjury under the laws of the State of California that:

1. This paper complies with California Rules of Court, rules 2.100 through 2.111 (format), rule 2.256(b) (text-searchable PDF), and rule 2.257 (signature).
2. Electronic service of this paper is made in the context of Code of Civil Procedure section 1010.6 and California Rules of Court, rule 1.21.
3. Cohort-wide OCR, bookmark, and SHA-256 attestations for the July 21 / August 2026 vexatious-litigant opposition packet are set out in the concurrently filed Declaration of Compliance (CRC 2.256 / 3.1110), which is not duplicated here.

Dated: July 22, 2026



Plaintiff in propria persona